

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009002

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: LAURIE MARTIN

vs.

DEFENDANT: ERIC GORDON, ET AL

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

The request to deem matters admitted is moot but the request for sanctions is **granted in the amount of \$500**. Plaintiff shall pay counsel for Defendant Kunkle this amount within twenty (20) days of this Order.

Discussion

According to her declaration in opposition to the motion, Plaintiff served verified responses to Defendant James Kunkle's requests for admission on June 9, 2026. There is no information before the Court indicating that these responses were not in substantial compliance with Code of Civil Procedure section 2033.220. Accordingly, based on this representation, the motion to deem the requests admitted is denied as moot. (See Code Civ. Proc., § 2033.280, subd. (c).) It is mandatory under the statute that the Court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated the filing of the motion. (*Id.*) The failure in this case was not particularly egregious, as Plaintiff did attempt to obtain an extension of time to respond. Therefore, considering all the circumstances, the Court will impose **a monetary sanction of \$500** to offset the cost of drafting and filing the motion. Plaintiff shall pay counsel for Defendant Kunkle this amount within twenty (20) days of this Order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009837

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: COLLEEN M. PROPPE

vs.

DEFENDANT: BRIAN T. COSTELLO

NATURE OF PROCEEDINGS: MOTION – OTHER: FOR JUDGMENT ON PLEADINGS

RULING

There is no proof of service on file for Defendant's motion for judgment on the pleadings. The motion is therefore **DENIED without prejudice** to refiling the motion upon proper service.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

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